TERMS OF USE

(EFFECTIVE AS OF MAY 18 2020)

IMPORTANT - this is a legal agreement between you ("You") and Luxottica of America Inc.. and its subsidiaries and affiliates (collectively, "Luxottica," "We" or "Us"), as manager of costadelmar.com (the "website"). You should read carefully the following terms of use ("TOU") as they govern your use of the website. These TOU are subject to change without prior written notice at any time, in Luxottica's sole discretion. By using the website, You agree to be bound by and accept the TOU in effect at the time of such use. Your use of this website is expressly conditioned upon your agreement to these TOU, as well as our terms of sale, returns policy, warranty policy and privacy policy ("Additional Policies").

1. **LICENSE GRANT.** Luxottica hereby grants to You a personal, revocable, limited, non-exclusive, and non-transferable license to use the Website solely for your personal use, which does not include activities related to any commercial, entrepreneurial or professional activity, provided that You comply with the terms and conditions of this TOU. Notwithstanding the foregoing, You may not modify, translate, decompile, create derivative work(s) of, copy, distribute, disassemble, broadcast, transmit, publish, remove or alter any proprietary notices or labels, license, sublicense, transfer, sell, mirror, frame, exploit, rent, lease, private label, grant a security interest in, or otherwise use the Website in any manner not expressly permitted herein.

2. **USER REPRESENTATIONS.** By accessing or using the Website, You represent that You are at least eighteen (18) years old. If You are not of such age, please consult with your parent or guardian with respect to this TOU, because persons under such age are authorized to use the Website only if a parent or guardian accepts this TOU on their behalf. In addition, You agree to abide by all applicable laws and regulations governing your use of the Website. Furthermore, You acknowledge and agree that this Website is directed at users in the U.S. only (and ships product to U.S. only).

3. **PROPRIETARY RIGHTS.** This TOU provides only a limited license to access and use the Website. Accordingly, You expressly acknowledge and agree that Luxottica transfers no ownership or intellectual property interest or title in and to the Website to You or anyone else. All text, graphics, user interfaces, visual interfaces, photographs, sounds, artwork, computer code (including html code), programs, software, products, information, and documentation as well as the design, structure, selection, coordination, expression, "look and feel," and arrangement of any content contained on or available through the Website, unless otherwise indicated, are owned, controlled, and licensed by Luxottica. COSTA DEL MAR, the Costa del Mar logo(s), and all other names, logos, and icons identifying Costa del Mar and its products and services are proprietary trademarks of Costa del Mar Inc. and any use of such marks, including, without limitation, as domain names, account identifiers, or as search terms, without express written permission is strictly prohibited. Other product and company names or logos mentioned or displayed on or through the Website may be the trademarks and/or service marks of their respective owners.

4. **CONTENT SUBMITTED BY YOU.** From time to time We may make available on this Website bulletin boards, chat rooms, comment areas, billboards, forums, news groups, postings sections or similar communication facilities. In such instances, We welcome your comments on our Website. However, any notes, messages, billboard postings, ideas, suggestions, or other material which You submit to Luxottica ("User-Posted Content") must not harass, slander, malign, libel, defame, threaten, or otherwise violate any rights of any third-parties and must not include any profanity, obscene, indecent, pornographic, defamatory, unlawful, or otherwise objectionable material all as determined by us. Furthermore, User-Posted Content must not infringe the intellectual property rights, privacy rights, rights of publicity, or other proprietary rights of any person or entity. Upon your submission of any and all User-Posted Content, You grant Luxottica a non-exclusive, royalty-free, perpetual, irrevocable right and license to use reproduce, copy, modify, alter, publicly display, publicly perform, post, transmit, broadcast, distribute or otherwise use the User-Submitted Content, such that Luxottica shall be and is entitled to use such User-Posted Content for any type of use, including promotional purposes and advertising, in perpetuity, in any and all media whether now known or hereafter devised, without any compensation to you. Your expressly waive any and all rights, grounds and actions concerning the inspection and approval of the finished product that may be produced and used in connection with your User-Posted Content. By submitting any User-Posted Content to us, You represent and warrant that You hold all necessary right, title and license to such User-Posted Content and that your submission of such materials to the Website does not and will not violate or infringe the rights of any third-parties, including but not limited to intellectual property or privacy rights.

5. **RESTRICTIONS** You agree not to modify, distribute, disclose or create works wholly or partially based on the Website. You cannot (nor allow third parties to) sub-license, rent, sell, distribute, circulate, provide, transform, de-codify, break down, disassemble, reverse engineer, create derivative works of, modify or translate the Website, or in any case reproduce, copy, use or provide the Website, or parts of it, in any other manner except for that expressly permitted herein or permitted by mandatory law. You acknowledge and

accept that the acquisition of any content or data through use of the Website is solely your responsibility and that You are solely responsible for any damage to the system or loss of data caused by using the service, even indirectly.

6. **PRIVACY POLICY.** Please review Luxottica's Privacy Policy found at /usa/privacy-policy for a summary of Luxottica's personally identifiable information collection and use practices

7. **AVAILABILITY AND CONTINUITY OF SERVICE.** You acknowledge and accept that Luxottica reserves the right, at its own and complete discretion, to temporarily or permanently (i) suspend or eliminate the Website, and/or (ii) disable any access to the Website.

8. **LINKS TO OTHER SITES.** The Website may facilitate access to other sites or on-line social media networks or pages for your convenience. These sites, networks, or pages have not necessarily been reviewed by Luxottica and are maintained by third parties over which Luxottica exercises no control. Accordingly, Luxottica expressly disclaims any responsibility for the content, the materials, the accuracy of the information, and/or the quality of the products or services provided by, available through, or advertised on these third party sites. Moreover, these links do not imply an endorsement with respect to any third party or any Web site or the products or services provided by any third party.

9. **WARRANTY DISCLAIMER. EXCEPT AS OTHERWISE EXPRESSLY SET FORTH IN OUR WARRANTY POLICY LUXOTTICA MAKES NO REPRESENTATIONS OR WARRANTIES ABOUT THE WEBSITE OR ANY GOODS PURCHASED BY YOU THROUGH THE WEBSITE FOR ANY PURPOSE AND EXPRESSLY DISCLAIMS ANY EXPRESS WARRANTIES INCLUDING, WITHOUT LIMITATION ANY WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE, TO THE FULLEST EXTENT PERMITTED BY THE APPLICABLE LAW.**

10. **LIMITATION OF LIABILITY. IN NO EVENT SHALL LUXOTTICA BE LIABLE FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE USE OF THE WEBSITE OR WITH THE DELAY OR INABILITY TO USE THE WEBSITE, WHETHER BASED IN CONTRACT, TORT, STRICT LIABILITY, OR OTHERWISE. NOTWITHSTANDING THE FOREGOING, TOTAL LIABILITY OF LUXOTTICA FOR ANY REASON WHATSOEVER RELATED TO USE OF THE WEBSITE SHALL NOT EXCEED THE TOTAL AMOUNT PAID BY YOU TO LUXOTTICA IN CONNECTION WITH THE SUBJECT MATTER OF THE PARTICULAR DISPUTE.**

11. **INDEMNITY** By using this application, You agree to defend, indemnify and hold harmless Luxottica and its parent and affiliates, and their directors, employees and agents, against any loss, damage, liability, cost, expense (including legal fees) asserted by any third party and arising from: (i) your use of and access to the Website; (ii) any User-Posted Content; (iii) your breach of any of these TOU; and

(iii) your infringement of any third party rights, including without limitation any property, privacy or intellectual property rights. This indemnity shall survive the duration of your use of the Website.

12. **ENFORCEMENT** You acknowledge that any breach, threatened or actual, of this TOU will cause irreparable injury to Luxottica, such injury would not be quantifiable in monetary damages, and Luxottica would not have an adequate remedy at law. You therefore agree that Luxottica shall be entitled, in addition to other available remedies, to seek and be awarded an injunction or other appropriate equitable relief from a court of competent jurisdiction restraining any breach, threatened or actual, of your obligations under any provision of this TOU.

13. **TERM AND TERMINATION.** This TOU will take effect at the time You begin using the Website. This TOUTOU will terminate automatically if You fail to comply with its terms and conditions. Termination will be effective without notice. You may also terminate this TOUTOU at any time by ceasing all use of the Website. Sections 3, 4, 7, 89, 10, 11, 12, 14, 15and this sentence of this Section 13, will survive the termination of this TOU for any reason.

14. **WAIVER & SEVERABILITY** Failure to insist on strict performance of any of the terms and conditions of this TOU will not operate as a waiver of any subsequent or other default or failure of performance. If any part of this TOU is determined to be invalid or unenforceable pursuant to applicable law or court order including, but not limited to, the warranty disclaimers and the liability limitations set forth above, then the invalid or unenforceable provision will be deemed superseded by a valid, enforceable provision that most clearly matches the intent of the original provision and the remainder of this TOU shall continue in effect.

15. **JURISDICTION AND APPLICABLE LAW** This agreement and all rights and obligations of the parties shall be governed by and construed in accordance with the laws of the State of New York without regard to its conflict of laws provisions. The parties agree to submit to the personal jurisdiction and venue of the state and federal courts of the State of New York within New York County.

16. **INDEPENDENT PARTY** You are an independent party. No joint venture, partnership, employment, or agency relationship exists between You and Luxottica as a result of this TOU or your utilization of the Website.

17. **ENTIRE AGREEMENT.** This TOU, the Additional Policies and any other agreement or terms or conditions for services, information, or licenses available through the Website, which are all hereby incorporated by reference as if set forth fully herein, represent the entire agreement between You and Luxottica with respect to use of the Website, and they supersede all prior or contemporaneous communications and proposals, whether electronic, oral, or written between You and Luxottica with respect to the Website.

18. **NO ASSIGNMENTS.** You may not assign or transfer any rights under this Agreement without the prior written consent of Luxottica.

19. **HEADINGS** Headings are for convenience only.

TERMS AND CONDITIONS OF SALE

Please read these terms and conditions of sale ("terms of sale") carefully. These terms of sale apply to you, the user of www.costadelmar.com (the "Website") and the purchaser of goods ("you"), and your purchase of any products from Luxottica of America Inc . ("Luxottica," "we" or "us"), through the Website. These terms are subject to change without prior written notice at any time, in luxottica's sole discretion. By placing an order for products through the site, you agree to be bound by and accept the terms of sale in effect at the time of such order. All sales are expressly conditioned upon your agreement to these terms of sale, as well as our terms of use, returns policy, warranty policy and privacy policy ("Additional Policies").

1. **INFORMATION ABOUT THE WEBSITE AND THE GOODS**

   a. We try to make sure that all information on the Website, including descriptions of our goods and listed prices, is accurate and correct at all times. However, mistakes do happen. We will try to resolve all errors in information on the Website as soon as reasonably possible and if We think that such an error has affected your order We will make all reasonable efforts to notify You via the contact information You provided to us on your account or during your order.

   b. Buying goods over the internet provides a different shopping experience from buying in-store. In particular, please be aware that: (i) the colors of goods as shown on the Website will depend on many factors – including your display settings; (ii) the actual sizes and shapes of the goods may differ from how they appear on your screen; (iii) pictures and images on the Website are for illustration purposes only – for an accurate description of any item and details of what is included with the item, please refer to the corresponding written description; (iv) all goods are subject to availability and We may not be able to supply your order; (v) We will do our best to arrange delivery of your goods within a reasonable time of ordering and the ship date as set out in the shipping confirmation email, but please note that all tracking information is provided to Us by our delivery service provider and are estimates of delivery only (more information about delivery is provided below); (vi) not all goods and promotions that are offered on the Website will be available in-store, and vice versa. We reserve the right to adjust prices, goods and special offers at our discretion and (vii)virtual model may distort or otherwise not provide an accurate representation of the product and its color(s), textures, size as well as your face and facial features and the fit of the glasses.

   c. If at any time you have any questions or concerns, please contact us at the information found at /customer-contact

2. **PURCHASING GOODS**

   a. **Placing your Order**

i. Once You have selected the goods which You would like, You will be asked to register your personal details with us by completing a registration form. Registration is not required; however We encourage registration in order to facilitate the checkout process during future orders on the Website.

ii. By placing an order with us, You represent and warrant that You are legally capable of signing binding agreements.

iii. When You place an order for goods via the Website, your order constitutes an offer to purchase goods from us. Where You order more than one item, your order comprises a series of offers for each item individually.

iv. After placing an order with us, you will access an order confirmation webpage and receive an order confirmation email (together the "Order Confirmations"). The Order Confirmations set out the final details of the order which you have submitted to the Website. Please take care when placing your order, as you will be unable to add to or amend your order after we send the Order Confirmations.

v. By placing an order with us, you represent and warrant that you are legally capable of signing binding agreements

b. **Order Acceptance**

i. Although we hope to be able to supply all goods ordered, we reserve the right, at our sole discretion, not to accept any offer. Should we reject your order, we will notify you as soon as reasonably possible (and, if payment has occurred, we would refund your payment).

c. **Payment**

i. We will take payment from your credit, debit card, gift card, Paypal account and other future forms of payment available at the time your order is shipped. You will receive an email or post mail detailing what items have shipped from your order (the "Invoice Email"). If your order is split into multiple shipments, we will charge you only for the items actually shipped at that time.

ii. Except where otherwise set out in these Terms of Sale, the price payable by you for the goods is the price given by the Website at the time you place your order. Applicable taxes and the delivery fee will be added at the time you place your order, but will not affect the base price of the goods.

d. **Shipping and Delivery**

i. After we send you your Order Confirmation e-mail, we will send you a separate Shipping Confirmation email. The Shipping Confirmation email will include a tracking number that you may use to track your order on our delivery service provider's website and

obtain an estimated delivery date.

ii. The goods will be delivered by a delivery service provider to the delivery address specified by you during the order process. Once the goods have been delivered to the address you provided, you become the owner of those goods and from that point they will be at your risk. This means you will be liable for any subsequent damage, loss or destruction.

CostaDelMar.com orders can be shipped within the United States. You will have the ability to select your preferred shipping method. Orders placed by 1pm EST on business days will usually ship the same day, but please allow up to 4 business days for your order to process before it ships and 3-10 days for delivery. We do our best to ensure timely deliveries, but please note that shipments can occasionally be delayed due to major holidays or unforeseen circumstances. Tracking numbers will be provided for all orders.

3. **CANCELLING AN ORDER AND RETURNING GOODS**

a. You may cancel your order for all other goods within one hour from its reception.

b. The CostaDelMar.com return policy is simple. Within 30 days of receipt of your order, you may return a pair of qualifying Costa Sunglasses or Costa Gear in its original condition with original packaging in new and saleable condition. (Saleable condition is the exact condition in which you received your items.) Returns must be shipped back within 30 days of receiving your items. FINAL SALE items are not eligible for returns. Shipping costs will not be refunded.

c. We explicitly reserve the right to reject any order or cancel any purchase at any time in the following cases, subject to any applicable refund: (i) the goods are not available/not in stock; (ii) the data you provide to us in connection with your purchase is incorrect or cannot be checked; (iii) your order is marked as suspicious or otherwise suggestive of fraud or illegality by our security systems; (iv) we have reason to believe that your purchase is intended for a further commercial activity; (v) there has been an error in the indicated price of the goods; (vi) we have reason to believe that you are under 18 years old and do not have parental consent; or (vii) we cannot deliver the goods to the address you have provided.

d. If any goods, including Made to Order Goods, have been delivered and found to be wrongly described, or are damaged or faulty and we cannot remedy the fault to your reasonable satisfaction, then these goods can be returned, provided that you notify us of the alleged defect in within 30 days after the goods has been received Please read our Returns Policy for more information about returning the goods.

4. **GENERAL TERMS ABOUT OUR RELATIONSHIP WITH YOU**

a. **Limitation of Liability.** IN NO EVENT SHALL LUXOTTICA BE LIABLE FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN ANY WAY CONNECTED WITH THE USE OF THE WEBSITE, OR ANY GOODS PURCHASED FROM THE WEBSITE, WHETHER BASED IN CONTRACT, TORT, STRICT LIABILITY, OR OTHERWISE. NOTWITHSTANDING THE FOREGOING, TOTAL LIABILITY OF LUXOTTICA FOR ANY REASON WHATSOEVER RELATED TO USE OF THE WEBSITE OR GOODS PURCHASED FROM THE WEBSITE SHALL NOT EXCEED THE TOTAL AMOUNT PAID BY YOU TO US IN CONNECTION WITH THE SUBJECT MATTER OF THE PARTICULAR DISPUTE.

b. **Warranties.** EXCEPT AS OTHERWISE EXPRESSLY SET FORTH IN THE WARRANTY POLICY: (I) THIS WEBSITE AND ALL GOODS PURCHASED BY YOU THROUGH THE WEBISTE ARE PROVIDED ON AN “AS-IS” BASIS; AND (II) LUXOTTICA MAKES NO REPRESENTATIONS OR WARRANTIES ABOUT THE WEBSITE OR ANY GOODS PURCHASED BY YOU THROUGH THE WEBSITE FOR ANY PURPOSE, AND EXPRESSLY DISCLAIMS ALL EXPRESS WARRANTIES OR WORRANTY OF FITNESS FOR A PARTICULAR PURPOSE.

c. **Events Beyond Our Reasonable Control (Force Majeure).** We will not be responsible for any delay or failure to comply with these Terms of Sale or the Additional Policies if the delay or failure arises from any event which is beyond our reasonable control. Such events would include (but are not limited to) fires, floods, earthquakes, storms, natural disasters, war, civil unrest, acts of terrorism or malicious damage to or destruction of our premises, equipment or goods or by reason of any act done pursuant to a trade dispute or shortages of labor.

d. **Waiver.** Delay in our exercising or our failure to exercise any right or remedy under these Terms of Sale, shall not constitute a waiver of our rights and remedies under these Terms of Sale.

e. **Invalidity.** In the event that one or more of the terms set out in these Terms of Sale or in the Additional Policies is held to be invalid by a competent authority, the remaining terms of the Terms of Sale and the Additional Policies shall continue to have effect and you will still be bound by them.

f. **Privacy.** Personal information, such as your contact details, that you provide to us during the order process will be kept and used by us in accordance with our Privacy Policy

g. **Governing Law.** This agreement and all rights and obligations of the parties shall be governed by and construed in accordance with the laws of the State of New York without regard to its conflict of laws provisions. The parties agree to submit to the personal jurisdiction and venue of the state and federal courts of the State of New York within New York County.

5. **ELECTRONIC RECEIPT OF COMMUNICATIONS.**

a. **Your consent to receipt of electronic communications** Your Consent. To the extent permitted by applicable law, you consent to electronically receive all records, notices, statements, communications, and other items for all services provided to you under these Terms and in connection with your relationship with us, including without limitation, the HIPAA Notice of Privacy Practices (collectively, "Communications") that we may otherwise be required to send or provide you in paper form (e.g., by mail). By accepting and agreeing, you represent that you have read and understand this consent to use electronic signatures and to receive Communications electronically.

SHOW US HOW YOU
#SEEWHATSOUTTHERE

SIGN UP FOR EMAILS AND GIVEAWAYS

Enter your email address

SIGN UP

CUSTOMER CARE

1-855-MY-COSTA

Parts & Service

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Accessibility Policy

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Dealer Locator

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